

IN THE COURT OF COMMON PLEAS
JUVENILE COURT DIVISION
LORAIN COUNTY, OHIO

SEALING APPLICATION (O.R.C. 2151.356)
EXPUNGEMENT APPLICATION (O.R.C. 2151.358)

participant/case info review zone

Juvenile's Name: Smith John A Case # 08 JT 38765
Last First M.I.

(Applicant should list name when the juvenile record was obtained even if name is different now)

Date of Birth: 11/27/88 Current Age: 19 Social Security # 222-85-9478

Current Address: 2987 Riverside Drive

City, State, Zip Code: Lorain, Ohio 44055 Phone: (440) - 277 - 3383

Has the record(s) already been sealed? ☒ Yes ☐ No

(A record that has been sealed by the Court will automatically be expunged 5 years after it is sealed or at age 23, whichever is earlier)

The undersigned applicant hereby requests that the applicant's record be:

☐ Sealed ☒ Expunged (record must already be sealed prior to asking for expungement)

The applicant represents that he/she has not been adjudicated delinquent for committing an act that is a violation of Sections 2903.01, 2903.02, 2907.03 or 2907.05 of the Ohio Revised Code states, that the applicant is not currently under the jurisdiction of the court in relation to a delinquency complaint, and that at least two years have passed since the termination of any order made by the Court in relation to the case, or any unconditional discharge from any institution or facility if the applicant was committed to an institution or facility in relation to the case.

The applicant also authorizes the release of any school and/or police report that may aid the court in making a finding in this matter.

The applicant further requests that the record be expunged earlier than the time period for automatic expungement set out in ORC 2151.356 for the following reasons:

I have had no legal problems since my traffic offense four years ago. I would like to see this off my record.

Applicant's Signature _____ Date _____

Juvenile Clerk Use Only

☐ I certify that the record reflects no further activity in the last two years, that the party named above has completed all orders of the Court and that it has been longer than two years since the parties unconditional release from an institution (if applicable).

Juvenile Clerk

Date

signature/date review zone

SEALING AND EXPUNGEMENT OF JUVENILE RECORDS

If you are charged with an offense as a juvenile, Ohio law allows you to have your juvenile record sealed or expunged. The following is a brief explanation of the process that you must follow to seal or expunge your record.

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1. ~~You may apply to this Juvenile Court~~ for an order to seal your records two (2) years after any order made by the Court has ended. If you have been placed in a juvenile institution or other facility, you may not apply until two (2) years after you have received an unconditional discharge from such institution or facility.
2. "Seal a record" means to remove a record from the main file of similar records and to secure it in a separate file that contains only sealed records accessible only to the Juvenile Court.
3. Applying to seal your record doesn't automatically mean that it will be sealed. The Juvenile Court must find that you have been rehabilitated to a satisfactory degree. In determining whether the person has been rehabilitated to satisfactory degree, the Court may consider all of the following:
 - a. The age of the person.
 - b. The nature of the case.
 - c. The cessation or continuation of delinquent, unruly, or criminal behavior.
 - d. The education and employment history of the person.
 - e. Any other circumstances that may relate to the rehabilitation of the person who is the subject of the records under consideration.
4. If your offense was aggravated murder, murder, rape, sexual battery or gross sexual imposition, your record cannot be sealed.
5. If your record is sealed by the Juvenile Court and someone asks you if you have a record, you may properly reply that no record exists. If asked, the Court will also reply that no record exists.
6. After your record has been sealed, your record will automatically be expunged after a period of five (5) years or when you reach age twenty-three (23), whichever occurs sooner. You may apply to the Juvenile Court to have your sealed record expunged sooner.
7. How is "expunging" a record different from "sealing" a record? "To expunge a record" means to destroy, delete, and erase a record, as appropriate for the record's physical or electronic form or characteristic, so that the record is permanently irretrievable. **Your record MUST be sealed first before it can be expunged.**
8. The Court provides an application to either seal or expunge your record. Upon your completing this form, you will need to present this application to the Juvenile Court Clerk's Office at the Justice Center in Elyria, Ohio.
9. You may wish to refer to the Ohio Revised Code, §2151.355; 2151.356; 2151.357 and 2151.358 for further details, available at most libraries and on the internet.

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